

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: May 22, 2026

1	Wisdom vs. California Department of Motor Vehicles 2025-01505175	Petition for Writ Petitioner Holly Lee Wisdom's Petition for Writ of Mandate is CONTINUED to December 4, 2026 at 9:30 AM. Petitioner seeks a Writ of Mandate pursuant to California Code of Civil Procedure §1094.5. Petitioner seeks an order directing the California Department of Motor Vehicles (DMV) to set aside the suspension of her driver's license.
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		Judicial review of a DMV license suspension "shall be on the record of the hearing and the court shall not consider other evidence." (Veh. Code, § 13559.) "In a section 1094.5 proceeding, it is the responsibility of the petitioner to produce a sufficient record of the administrative proceedings; 'otherwise the presumption of regularity will prevail, since the burden falls on the petitioner attacking the administrative decision to demonstrate to the trial court where the administrative proceedings were unfair, were in excess of jurisdiction, or showed "prejudicial abuse of discretion.'" (Elizabeth D. v. Zolin (1993) 21 Cal.App.4th 347, 354.) Moreover, a memorandum of points and authorities is required for a noticed motion, including for mandamus. (See CCP § 1094; CRC Rule 3.1113(a) and (b).) The absence of a memorandum is an admission that the motion is not meritorious and may be denied. (CRC Rule 3.1113(a).) "The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (CRC, Rule 3.1113(b).) Here, Petitioner did not serve or file the administrative record on a timely basis, nor did she submit a memorandum of points and authorities that cites to an administrative record to support her Petition. Accordingly, the hearing on the motion is continued to allow Petitioner to file an opening brief with a memorandum of points and authorities. Petitioner must file her opening brief no later than October 9, 2026. Any Opposition to be filed by October 23, 2026. Any Reply brief due November 6, 2026. Petitioner shall give notice.
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2	Abinante vs. Shaffer 2025-01490233	1. Motion to Strike Portions Of Complaint 2. Demurrer to Complaint 3. Motion to Seal 4. Order to Show Cause re: Legal Representation 5. Order to Show Cause re: Failure to Prosecute 6. Case Management Conference Special Motion to Strike. The motion by defendants Thomas Shaffer and Wendy Dahl to strike portions of Plaintiffs' Complaint pursuant to Code Civ. Proc., § 425.16, is GRANTED IN PART and DENIED in part. The motion is GRANTED as to the following allegations of the Complaint: 1. That portion of ¶ 45 of the Complaint, reading: "and have used those funds (his own funds) to litigate against ABINANTE and make wild claims about him stealing money for himself;" 2. That portion of ¶ 46 of the Complaint, reading: "Despite this, BURNER and SHAFFER continue to authorize monthly legal fees between \$60,000 and \$100,000 for the purpose of litigating against ABINANTE. They brought this action against ABINANTE and his entities under the premise of Covid Clinic, Inc. being a 'nonprofit' while simultaneously alleging in their pleadings and arbitration demands that it was run as a for profit;" 3. That portion of ¶ 61 of the Complaint, alleged within the 1st cause of action for declaratory relief, reading: "and ultimately sued ABINANTE with the assets which were supposed to be transferred to ABINANTE and RUME; 4. That portion of ¶ 63(e) of the Complaint, alleged within the 1st cause of action for declaratory relief, reading: "or litigate against him using assets that were supposed to be transferred to RUME were taken in violation of fiduciary and equitable duties owed to ABINANTE;" 5. That portion of ¶ 63 of the Complaint, alleged within the 2nd cause of action for
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	breach of fiduciary duties, reading: "using corporate funds intended for transfer to RUME to fund litigation against ABINANTE personally;" 6. That portion of ¶ 66(c) of the Complaint, alleged within the 2nd cause of action for breach of fiduciary duties, reading: "Using funds and resources she knew were earmarked for RUME HEALTH to fund litigate directly targeting ABINANTE, including claims asserting he had no right to the assets he created and funded;" 7. That portion of ¶ 70(c) of the Complaint, alleged within the 3rd cause of action for intentional misrepresentation, reading: "Use corporate funds and infrastructure to litigate against ABINANTE;" 8. That portion of ¶ 73(b) of the Complaint, alleged within the 3rd cause of action for intentional misrepresentation, reading: "Exposure to costly and harassing litigation funded by assets meant for RUME HEALTH;" 9. That portion of ¶ 77 of the Complaint, alleged within the 4th cause of action for negligent misrepresentation, reading: "and ultimately used corporate funds to initiate litigation against Plaintiffs;" 10. That portion of ¶ 80 of the Complaint, alleged within the 4th cause of action for negligent misrepresentation, reading "and costs incurred in defending against litigation funded with resources that were intended for the transition;" 11. That portion of ¶ 87(b) of the Complaint, alleged within the 5th cause of action for civil conspiracy, reading: "and use it to litigate against him personally;" 12. That portion of ¶ 98 of the Complaint, alleged within the 6th cause of action for intentional misrepresentation, reading: "and initiate litigation against him;" and 13. That portion of ¶ 113 of the Complaint, alleged within the 8th cause of action for equitable indemnity, reading: "and used corporate funds to initiate litigation against ABINANTE and RUME HEALTH." Moving parties have shown that these allegations arise out of protected activity. (Code Civ. Proc., § 425.16, subd. (e)(1))
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		[protected activity includes “any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law”]; Baral v. Schnitt (2016) 1 Cal.5th 376, 384 [moving defendant’s initial burden to identify allegations of protected activity, and the claims for relief supported by them]; Sheley v. Harrop (2017) 9 Cal.App.5th 1147, 1166-1167 [“allegations related to the filing and funding” of litigation “describe[] conduct constituting protected activity” under the anti-SLAPP statute].) Plaintiffs have not opposed the motion and have not met their burden of presenting admissible evidence showing that these allegations are “legally sufficient and there is admissible evidence that, if credited, would be sufficient to sustain a favorable judgment.” (McGarry v. University of San Diego (2007) 154 Cal.App.4th 97, 108; see also Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009 [once initial burden met, plaintiff’s burden to show claim has minimal merit].) The remainder of the motion, which seeks to strike the 1st through 6th and 8th causes of action in their entirety, is DENIED. Moving parties have not identified any other allegations of protected activity, aside from the allegations above regarding initiating and funding litigation. (Baral v. Schnitt, supra at 384 [moving defendants’ initial burden].) The challenged causes of action are not limited to these allegations, but are also based on other activity which is not shown to be protected under the anti-SLAPP statute. (Bonni v. St. Joseph Health System, supra at 1012 [court may strike specific allegations, but “to the extent any acts are unprotected, the claims based on those acts will survive”].) Moving parties are awarded reasonable attorney fees in the amount of \$4,840.00 for 8 hours at \$605/hour. (Code Civ. Proc., § 425.16, subd. (c)(1).)”
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		Demurrer to Complaint. Defendant Healthy Campus, LLC’s demurrer to the 1st, 5th, 7th, and 8th causes of action of the Complaint is SUSTAINED, with leave to amend, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Moving defendant’s request for judicial notice is DENIED. (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 607-608 [materials prepared by private parties and merely on file with state agencies are not ordinarily a proper subject of judicial notice]; Gould v. Maryland Sound Industries, Inc. (1995) 31 Cal.App.4th 1137, 1145-1146 [“the existence of a contract between private parties cannot be established by judicial notice under Evidence Code section 452, subdivision (h)”]; see also The Travelers Indemnity Co. of Connecticut v. Navigators Specialty Ins. Co. (2021) 70 Cal.App.5th 341, 354-355 [“The existence and terms of a private agreement are not facts that are not reasonably subject to dispute and that can be determined by indisputable accuracy”].) Plaintiffs are granted 20 days leave to file a First Amended Complaint, if at all. 1st cause of action: declaratory relief. This cause of action fails to state sufficient facts. (Ludgate Ins. Co. v. Lockheed Martin Corp. (2002) 82 Cal.App.4th 592, 605 [elements]; Complaint, ¶¶ 58-61 [alleging only disputes between plaintiff Abinante and defendants Shaffer, Burner, and Collins, not this moving party].) 5th cause of action: civil conspiracy. This cause of action fails to state sufficient facts. (Mosier v. Southern California
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		Physicians Insurance Exchange (1998) 63 Cal.App.4th 1022, 1048 [elements].) As discussed elsewhere, the Complaint fails to state any valid cause of action against this moving party. (Worldwide Commerce, Inc. v. Fruehauf Corp. (1978) 84 Cal.App.3d 803, 811 [conspiracy claim fails where no underlying tort is validly alleged]; Okun v. Superior Court (1981) 29 Cal.3d 442, 454 ["A complaint for civil conspiracy states a cause of action only when it alleges the commission of a civil wrong that causes damage ... the conspiracy itself is not actionable without a wrong"].) 7th cause of action: intentional interference with prospective economic advantage. This cause of action fails to state sufficient facts. (Youst v. Longo (1987) 43 Cal.3d 64, 71 [elements]; Della Penna v. Toyota Motor Sales, Inc. (1995) 11 Cal.4th 376, 393 [defendant's actions must be wrongful by some measure other than the interference itself]; Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1159 ["An act is independently wrongful if it is 'unlawful, that is if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard'"].) There are no facts alleged to show how this moving party committed any actions that are independently wrongful, as opposed to the individual defendants who are alleged to have breached fiduciary duties to plaintiffs, and/or committed misrepresentation. 8th cause of action: equitable indemnity. This cause of action fails to state sufficient facts. (Bailey v. Safeway, Inc. (2011) 199 Cal.App.4th 206, 212 [elements, including a showing of fault on the part of the alleged indemnitor].) There are no facts alleged to show how this moving party is at fault, as opposed to the individual defendants who are alleged to have breached fiduciary duties to plaintiffs, and/or committed misrepresentation.
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		Motion to Seal. Defendant Healthy Campus, LLC's motion to seal Ex. 3 to its request for judicial notice is DENIED. (Cal. Rules of Court, Rules 2.550, 2.551 [sealing requirements / findings].) Moving party fails to show why the entire document should be sealed. (Cal. Rules of Court, Rules 2.550, subd. (d)(4) [proposed sealing must be "narrowly tailored"], 2.551, subd. (a) ["The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties"]; H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894 [moving party must present "specific enumeration of the facts sought to be withheld and specific reasons for withholding them"].) *****
3	Daimler Truck Financial Services USA LLC vs. Expercarriers Inc. 2022-01280524	Motion for New Trial ***Parties were ordered to have a court reporter present*** Defendant Christopher Sawicki's Motion for New Trial is DENIED. The Court notes that no Opposition was filed by Plaintiff and no Reply was filed by Defendant Sawicki. Moving Party was in court on November 3, 2025, when Plaintiff answered ready. Moving Party indicated that he needed a continuance due to a recent medical issue. The Court continued the matter. The Court inquired of both sides as to a mutually acceptable date for the continued trial and December 15, 2025 was agreed upon. On December 15, 2025, Moving Party and

		Plaintiff both proceeded to trial. Moving Party made no mention of a continuance request nor that he could not go forward for any reason. To the contrary, Moving Party fully engaged in the proceedings, giving an opening statement, cross-examining the opposing witness, testifying himself and giving a closing statement. Moving Party never stated that he could not proceed or needed a continuance of the trial. After the Court ruled against the Moving Party at the conclusion of the trial, the Moving Party waited over two months to file this Motion based on health issues or concerns that were not presented to the Court on December 15, 2025. Accordingly, the motion is denied. Plaintiff is ordered to submit a Proposed Judgment no later than June 12, 2026. Clerk is ordered to give notice
5	Hill vs. City of Fountain Valley 2024-01386471	Motion for Summary Judgment and/or Adjudication Defendants City of Fountain Valley, James Cataline, Stuart Chase, and Gannon Kelly's Motion for Summary Judgment is DENIED. As an initial matter, Moving Defendants' separate statement in support of the motion does not comply with the requirements of Cal. Rules of Court, Rule 3.1350, subd. (d)(3), which requires that "[t]he statement must state in numerical sequence the undisputed material facts in the first column followed by the evidence that establishes those undisputed facts in that same column. Citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers." Here, Moving Defendants have failed to include any

		citation to evidence in support of any of the purportedly undisputed facts upon which their motion relies. This defect has made it exceedingly time consuming to assess the evidentiary basis for Defendants’ motion. It is within the court’s discretion to DENY a motion for summary judgment for failure to comply with Cal. Rules of Court, Rule 3.1350. (See <i>Truong v. Glasser</i> (2009) 181 Cal.App.4th 102, 118 [“[T]he court’s power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary”].) Since Plaintiff has been able to substantively respond to the motion and Moving Defendants’ deficient separate statement, the court will proceed on the merits of the motion. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc. (“CCP”), § 437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].) If a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i>(1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action “cannot be established” by submitting evidence—such as discovery admissions and responses—that the plaintiff does not have and cannot reasonably obtain
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	evidence to establish an essential element of his cause of action. (Aguilar v. Atlantic Richfield Co. (1995) 25 Cal.4th at 854-55; see also Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; Scheiding v. Dinwiddie Const. Co. (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information]; Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1441-42 [same].) Once the moving party meets that burden, the burden shifts to the party opposing MSJ to show, by reference to specific facts, the existence of a triable issue as to that affirmative defense or cause of action. (Id.; Villacres v. ABM Industries, Inc. (2010) 189 Cal.App. 4th 562, 575.) To meet this burden, the opposing party must present substantial and admissible evidence creating a triable issue. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (Doe v. Salesian Society (2008) 159 Cal.App.4th 474, 481; Bushling v. Fremont Med. Center (2004) 117 Cal.App.4th 493, 510.) The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland (2001) 92 Cal.App.4th 1247, 1260.) Here, Plaintiff alleges a single cause of action for false arrest. To state a cause of action for false arrest (a variation of the tort of false imprisonment), a plaintiff must allege three elements: (1) the defendant arrested the plaintiff without a warrant, (2) the plaintiff was harmed, and (3) the defendant's conduct was a substantial factor in causing the harm. (Carcamo v. Los Angeles County Sheriff's Dept. (2021) 68 Cal.App.5th 608, 616; see
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		CACI No. 1401; see also <i>Asgari v. City of Los Angeles</i> (1997) 15 Cal.4th 744, 753, fn. 3 [false arrest and false imprisonment are not separate torts; a false arrest is but one way of committing a false imprisonment].) If the plaintiff ultimately proves these elements, the defendant has the burden of persuasion to prove the arrest was justified. (<i>Carcamo</i>, supra., 68 Cal.App.5th at 616; <i>Levin v. United Air Lines, Inc.</i> (2008) 158 Cal.App.4th 1002, 1018; see CACI No. 1402 [affirmative defense, probable cause to arrest].) A warrantless arrest may be justified where there is reasonable cause to believe the person arrested has committed a misdemeanor in the presence of the arresting officer. (See <i>Levin</i> supra. 158 Cal.App.4th, at 1017-1018; <i>People v. Donaldson</i> (1995) 36 Cal.App.4th 532, 537; Pen. Code, § 836, subd. (a)(1).) Reasonable cause to arrest exists when the facts known to the arresting officer would lead a reasonable person to have a strong suspicion of the arrestee's guilt. [citations] This is an objective standard. (<i>Id.</i> at 1018.) "If the facts that gave rise to the arrest are undisputed, the issue of probable cause is a question of law for the trial court." (<i>Id.</i> at 1018.) Thus, for Moving Defendants to meet their burden as a party moving for summary judgment, they must either identify undisputed facts that affirmatively negate one or more elements of Plaintiff's claim for false arrest, demonstrate that Plaintiff lacks sufficient evidence to establish one or more elements of Plaintiff's cause of action for false arrest, or identify undisputed facts that show the arrest was justified. Here, Moving Defendants argue that the arrest was justified because the arresting officers had reasonable cause to believe Plaintiff had violated Pen. Code §69 in their presence. Pen. Code §69, subd. (a) provides: "Every person who attempts, by means of any threat or violence, to deter or prevent an executive officer from performing any duty imposed upon the officer by law, or who knowingly resists, by the use of force or
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		violence, the officer, in the performance of his or her duty, is punishable by a fine not exceeding ten thousand dollars (\$10,000), or by imprisonment pursuant to subdivision (h) of Section 1170, or in a county jail not exceeding one year, or by both such fine and imprisonment." Moving Defendants contend that the undisputed facts show the arresting officers had reasonable cause to believe Plaintiff had violated Pen. Code §69. (See SSUMF Nos. 24-28 [Plaintiff closed door forcefully, causing Officer Kelly's foot to become forcibly displaced from the threshold]; 30 [Plaintiff "locked his arms, stiffened his body, and actively prevented officers from securing his arms..."].) Moving Defendant has provided Ring Camera footage of the incident, recordings of conversations between the arresting officers and various individuals involved in the incident, and declarations of the arresting officers to establish these facts. While the separate statement fails to precisely identify what evidence Moving Defendants contend establishes these facts, the Court finds that these facts are sufficient to satisfy Moving Defendants' initial burden on summary judgment. Plaintiff, however, has met his shifted burden to show that there is a triable issue of fact as to whether the arresting officers had reasonable cause to suspect Plaintiff had violated Pen. Code §69. Namely, Plaintiff has shown that Moving Defendants' SSUMF Nos. 24, 25, 26, 27, 28, and 30 are all disputed. (See Plaintiff's Compendium of Evidence Exhibits L and Y [video recordings of the interaction Moving Defendant argues gave the arresting officers reasonable cause] and Plaintiff's Declaration ¶¶27-38.) The circumstances giving rise to Plaintiff's arrest are far from undisputed. The question of whether the arresting officers had reasonable cause to believe Plaintiff had violated Pen. Code §69 is a question that must be determined by the jury. Moving Defendants' argument that summary judgment is warranted based upon the
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		contention they are entitled to statutory immunity under Pen. Code §847, subd. (b) is not persuasive. Pen. Code §847, subd. (b) provides "There shall be no civil liability on the part of, and no cause of action shall arise against, any peace officer or federal criminal investigator or law enforcement officer described in subdivision (a) or (d) of Section 830.8, acting within the scope of his or her authority, for false arrest or false imprisonment arising out of any arrest under any of the following circumstances: (1) The arrest was lawful, or the peace officer, at the time of the arrest, had reasonable cause to believe the arrest was lawful." Since, as discussed above, the question of reasonable cause in this case is a question that must go to the jury, the application of Pen. Code §847, subd. (b) is not a basis for summary judgment here. Plaintiff shall provide notice of this ruling.
6	Ocampo vs. Nguyen 2024-01431732	Motion for Summary Judgment and/or Adjudication When a defendant seeks summary judgment, it bears the burden of proof by a preponderance of the evidence to establish that an action has no merit, that plaintiff cannot prove an element or some elements of a cause of action, or that a complete defense is established as a matter of law entitling it to judgment. C.C.P. § 437c (p) (2), and Hunter v. Pacific Mechanical Corp. (1995) 37 Cal.App.4th 1282, 1287. If the moving party cannot meet its burden, then the opposing party has no burden to oppose the motion by submitting evidence demonstrating that triable issues of fact exist in the case. Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840. But if the moving party carries its initial burden, then the party opposing the motion must produce admissible evidence to show that a triable issue of fact, or issues of fact, exists. C.C.P. § 437c (p) (2), and Green

		v. Ralee Engineering Co. (1998) 19 Cal.4th 66, 72. The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland (2001) 92 Cal.App.4th 1247, 1260.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (McCabe v. American Honda Motor Corp. (2002) 100 Cal.App.4th 1111, 1119.) Here, if Moving Party is successful in meeting its initial burden, the burden then shifts to plaintiff to produce evidence to raise a triable issue of fact as to why the Moving Party should be liable for plaintiff's injuries. Merits Note: Nguyen's Separate Statement in support of the motion is appended to the memorandum in support of the motion. It is not filed separately. While technically not a violation of the CRC, it is extremely difficult for the reader to locate (beginning on page 34 of a 67-page document.) In automobile accident cases, particularly rear-end collisions, defendants face significant challenges in obtaining summary judgment. In Kramer v. Barnes, (1963) 212 Cal.App.2d 440, the court held that the fact of a rear-end collision itself constitutes evidence of negligence, and a showing that the defendant's vehicle had been stopped for five to ten seconds before being struck was "insufficient to absolve defendant from negligence as a matter of law." Courts recognize that credibility determinations and weighing of conflicting evidence are inappropriate at the summary judgment stage. Somerville v. Providence Washington Indem. Co. (1963) 218 Cal.App.2d 237.
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		In contrast, the court in Beck v. Kessler (1965) 235 Cal.App.2d 331, recognized Kramer as support for the rule that in rear-end collision cases, the question of a following driver's negligence generally presents a factual issue for the trier of fact. However, Beck v. Kessler emphasized that Kramer v. Barnes dealt only with whether defendant's own affidavits furnished enough proof of negligence to require a triable issue of fact, thus necessitating reversal of summary judgment in that particular context. Beck v. Kessler distinguished its own facts from Kramer's, noting that in some rear-end collision cases—including its own—undisputed facts may compel a finding of negligence as a matter of law. Therefore, Beck v. Kessler limits Kramer's reach to its facts and does not interpret it as foreclosing the possibility that, under different circumstances, the trier of fact may be directed to a single conclusion of negligence or non-negligence. Essentially, Beck v. Kessler observed that while Kramer recognized a permissible inference of negligence from a rear-end collision may be made, it expressly left open that such an inference might be rebutted, and it does not treat the holding as establishing an invariable rule or precluding summary judgment in all rear-end collisions. While Beck holds that the question of liability (or non-liability) may be a question of law suitable for summary adjudication, the court must look at the specific facts of the case to make such a determination. The evidence here is as follows: - Nguyen was not running late or distracted at the time of the incident (UMF #3) - Nguyen's head was up the entire time (UMF #4) - Nguyen could clearly see where she was going without any vision obscurants. (UMF #6)
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		- Nguyen could not avoid impacting the rear left bumper side of Ocampo's car. (UMF #8) - Ocampo was running late to school that morning. (UMF #10) - Nguyen's accident reconstructionist determined Ocampo attempted an illegal left turn directly in front of Nguyen. (UMF #17) Ocampo disputes all of the above evidence, but even if the Court were to accept the above to be true, the evidence is insufficient to absolve Nguyen from liability as a matter of law. The evidence does not foreclose the possibility that Nguyen was contributorily negligent in the operation of her vehicle that morning. As discussed above, the court in Kramer held that "a collision in which a following motorist collides with the rear end of a vehicle ahead is some evidence of negligence on the part of the following motorist." Kramer further held "Prima facie each case imports negligence and explanations are in order." This principle creates a permissible inference of negligence from the fact of a rear-end collision, requiring "some explanation or excuse from the driver of the rear car." Beck v. Kessler, supra. Whether the rear driver was negligent "is essentially a question of fact and not of law because it is dependent upon the circumstances of the individual case." Kramer, supra. The defendant must present evidence explaining how the collision occurred despite the exercise of reasonable care. For example, the court in Harding v. Mac Dougal, (1969) 275 Cal.App.2d 396, held that depositions presented factual issues precluding summary judgment regarding "whether driver of middle vehicle was negligent in tailgating, stopping suddenly without signal or warning to driver of vehicle to his rear, or was driving at excessive speed."
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		Further, Ocampo has presented evidence that it was raining at the time the incident occurred (or shortly prior to the incident.) Without evidence demonstrating Nguyen was driving safely for the road conditions or absence of distraction, she cannot meet the burden for summary judgment. For example, the court in <i>Bewley v. Riggs</i>, (1968) 262 Cal.App.2d 188, held summary judgment for the leading driver was precluded where "inquiry as to whether or not there was negligence by leading driver in rear-end automobile collision case was strictly dependent upon what the findings of fact might prove to be." The circumstances surrounding the accident, including attention to driving and road conditions, present questions of fact that must be resolved by the trier of fact rather than on summary judgment. Nguyen testified that her "head was up" at the time of the accident, but that doesn't mean she wasn't distracted by something else on the roadway at the time the incident occurred. Further although she claims she was traveling with the flow of traffic, if the road was wet, there is no indication she was travelling at a speed that was safe for the road conditions. In sum, the Court denies summary judgment. Nguyen has not met her initial burden showing she was in no way responsible for the subject traffic collision. RULING: Defendant Jenny Nguyen's motion for summary judgment as to the claims of plaintiffs Efigenia Ocampo and Val Erie Ocampo is DENIED. Nguyen has not met her initial burden showing plaintiffs cannot prove an essential element of their claim. Nguyen has not shown, as a matter of law, that she did not cause or contribute to the rear end accident. See C.C.P. § 437c (p) (2), and <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 Cal.App.4th 1282, 1287.
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		Plaintiffs' objections to the declaration of Jenny Nguyen are overruled. Plaintiffs' objections to the declaration of Daniel F. Trudell is sustained as to Exhibit B and otherwise overruled. Moving Party shall give notice.
9	Ferrer vs. Essence Home Care, LLC 2024-01439555	Motion to Compel Production Plaintiff Jose Ferrer's motion to compel further responses to his first set of requests for production is GRANTED as follows. (See Code Civ. Proc., § 2031.310.) Defendant Essence Home Care, LLC (EHC) is ORDERED to provide verified further responses without objections to plaintiff's first set of requests for production, Nos. 11-13, 15, 17, 22, 25, 27, 28, 35-38, and 48-54, within 14 days of notice. To avoid any confusion, EHC's further responses shall include the simultaneous production of any and all responsive documents to these requests. Sanctions are DENIED, as plaintiff has failed to demonstrate a proper meet and confer effort. (See Code Civ. Proc., §§ 2016.040 [eff. 1/1/26], 2031.310, subd. (b)(2).) As of 1/1/26, a proper meet and confer requires "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Id., § 2016.040.) In other words, a mere letter is no longer enough. Plaintiff should have agreed to the telephonic conference requested by EHC's counsel. (See LaCour Decl. ¶¶ 12-13.) Plaintiff shall give notice.

10	Kaur vs. Hill 2024-01436693	1. Motion – Other 2. Status Conference re: ADR Plaintiffs Mandip Kaur and Amrit Pal Singh’s motion to lift stay, resume jurisdiction, and find arbitration waived, is DENIED WITHOUT PREJUDICE. First, proof of service is defective, as the sender’s electronic service address is missing. (Code Civ. Proc., § 1013b, subd. (b)(1).) There is no response by defendant waiving the defective proof of service. (See Carlton v. Quint (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect].) Second, the motion is also denied on the merits. Moving parties have not shown that they are entitled to relief pursuant to Code Civ. Proc., §§ 1281.97 et seq., as there is no evidence this matter involves “an employment or consumer arbitration.” (Code Civ. Proc., §§ 1281.97, subd. (a)(1), 1281.98, subd. (a)(1); see also § 1280, subds. (c), (f) [defining “consumer” and “employee,” respectively]; First Amended Complaint, Exs. A and B [contracts pertaining to sale of business].) There is no evidence that the arbitration has been terminated or dismissed. (SWAB Financial, LLC v. E*Trade Securities, LLC (2007) 150 Cal.App.4th 1181, 1200 [“Once a petition is granted and the lawsuit is stayed, ‘the action at law sits in the twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration ... In the interim ... It is the job of the arbitrator, not the court, to resolve all questions needed to determine the controversy ... It is also up to the arbitrator, and not the court, to grant relief for delay in bringing an arbitration to a resolution;” internal citations omitted].) There is also no evidence that moving parties have taken any action in the arbitration proceedings for relief from defendant’s failure to pay arbitration fees. (See Brock v. Kaiser Foundation
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		Hospitals (1992) 10 Cal.App.4th 1790, 1808 [failure to cooperate in arbitration “does not mean that a party to an arbitration proceeding has no remedy against dilatory tactics,” but “may move in the arbitration proceedings to terminate them for failure to pursue the arbitration claim with reasonable diligence”]; Cinel v. Christopher (2012) 203 Cal.App.4th 759, 769 [resuming court jurisdiction].) ***ADR Review is continued to January 25, 2027 at 9 AM. Moving Party shall give notice of all the above.
11	Terteryan vs. Toyota Motor Sales, U.S.A., Inc. 2025-01510573	1. Motion to Compel Deposition (Oral or Written) 2. Motion to Compel Production MOTION NO. 1 Defendant Toyota Motor Sales, U.S.A., Inc.’s Motion to Compel Plaintiff Gevorg Terteryan’s Deposition is MOOT. Plaintiff’s deposition notice was served on October 6, 2025, with the deposition scheduled for December 11, 2025. (Webber Decl., ¶ 2. Exh. A.) Plaintiff objected to the date of the deposition, but failed to provide an alternative date, despite repeated attempts by defense counsel to obtain a new date. It now appears Plaintiff’s deposition went forward on May 6, 2026. The Court finds no substantial justification for Plaintiff’s failure to appear at his deposition date or provide dates for his deposition. Thus, Defendant’s request for monetary sanctions is GRANTED at a reduced amount for a total of \$720.00 (2 hrs at \$330/hr + \$60 filing fee) against Plaintiff and his counsel of record.

	(Code Civ. Proc., § 2025.450(g).) Sanctions to be paid within 30 days. MOTION NO. 2 Defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Compel Inspection of the Subject Vehicle is GRANTED. The demand for inspection of the vehicle was served on October 6, 2025, with a January 7, 2026, inspection date. (Webber Decl. ¶ 2, Exh. A.) Plaintiff did not produce the vehicle for inspection or serve objections. (Webber Decl. ¶ 7.) Accordingly, the motion for vehicle inspection is GRANTED. (Code Civ. Proc., § 2031.300(b).) The vehicle inspection shall take place on a mutually convenient date within 15 days. The Court finds no substantial justification for Plaintiff's failure to produce the Subject Vehicle for inspection. Thus, Defendant's request for monetary sanctions is GRANTED at a reduced amount for a total of \$720.00 (2 hrs at \$330/hr + \$60 filing fee) against Plaintiff and his counsel of record. (Code Civ. Proc., § 2031.300(c).) Sanctions to be paid within 30 days. ***NOTE: Plaintiff filed very untimely Oppositions. Although a court may choose to not consider untimely filings, this Court has considered the late Oppositions. All counsels are admonished that the Court will not consider late filings in the future. Defendant shall give notice.
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